

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS’ RESPONSE TO RESPONDENTS’ MOTION FOR EXTENSION OF
TIME TO RESPOND TO MOTION TO WITHDRAW**

Pursuant to Rules 69, 71, and 102, of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this response to respondents’ motion for an extension of time to respond to the motion by Eric. C. Jeffrey to withdraw as counsel for respondents.

ARGUMENT

Complainants’ response to the latest request for an extension of time by respondents is twofold, as set forth in the email annexed hereto as Appendix “1”, to wit: inasmuch as this is respondents’ third request for an extension of time since November 16, 2016. The instant request

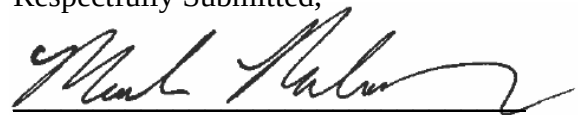
now seeks approximately a one hundred fifty (150) day extension within which to respond to a motion to withdraw. Additionally, the rules require that respondents' instant request be filed seven or more days before the current due date. This is also not the first time that respondents have sought leave of the Commission to waive the seven day rule. Therefore complainants do not consent to respondents' request on this basis as well.

For purposes of brevity and to avoid repeating arguments previously made on this issue, the Commission is respectfully referred to the arguments already set forth within Complainants' Response to Respondents' Second Joint Motion for a Further Extension of Time to Withdraw, dated January 18, 2017, a copy of which is annexed hereto as Appendix "2" and which are incorporated by reference in their entirety (Appendix to the January 18, 2017 filing has been omitted here).

WHEREFORE, it is respectfully requested that respondents' instant motion for an extension of time be denied in its entirety, together with such other and further relief as the Commission may deem just and proper under the circumstances.

Dated: March 16, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

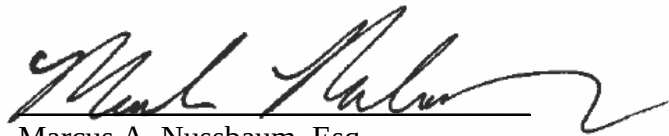
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' RESPONSE TO RESPONDENTS' MOTION FOR EXTENSION OF TIME TO RESPOND TO MOTION TO WITHDRAW** and **APPENDIX** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in dark ink, appearing to read 'Marcus A. Nussbaum', is written over a horizontal line.

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Dated: Pearl Harbor, Hawaii
March 16, 2017